IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No. 101
CP (CAA) No. 30/Chd/HP/2023
(2nd motion)

IN THE MATTER OF:
Bagrrys India Pvt. Ltd. ... **Transferor Company**

And

Bagrrys Pvt. Ltd. ... **Transferee Company**

Under Section: 230-232, CA 2013

Order delivered on 23.02.2024

CORAM:

SHRI. L. N. GUPTA,
HON'BLE MEMBER (T)

SHRI. HARNAM SINGH THAKUR,
HON'BLE MEMBER (J)

PRESENT:
For the Petitioner : Mr. Kartikeya Goel, Advocate.
For ROC : Mr. Vineet Khatri, Company Prosecutor
For the Income Tax Department : None

ORDER

In view of the resolution of the Bar dated 23.2.2024, the Members of the Bar have abstained from Court work today, hence the matter is adjourned to 07.03.2024.

The report of ROC & Income Tax Department have been filed by diary No. 02630/3 dated 13.11.2023 and diary No. 02630/5 dated 07.12.2023 respectively. Response to the report of Regional Director has been filed vide diary No. 02630/6 and response to the Income-Tax Department has been filed vide Diary No. 02631/7 dated 31.01.2024. The affidavit of service has been filed vide diary No. 02630/8 dated 22.02.2024, confirming the non-applicability of the Competition Act, 2022. The same are taken on record.

February 23, 2024
Mukta

The Ld. counsel for the petitioner is directed to file comparative chart of the observations made by the RD and Income Tax department and response thereto in Tabular form.

Sd/-
(L. N. GUPTA)
HON'BLE MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

February 23, 2024
Mukta